



Saint Dionis Backchurch Churchyard (Amendment) Act 1964

CHAPTER xxiv

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ELIZABETH II



1964 CHAPTER xxiv

An Act to amend the Saint Dionis Backchurch Churchyard Act 1963, and for purposes incidental thereto.

[16th July 1964]

WHEREAS by the Saint Dionis Backchurch Churchyard 1963 c. xiv. Act 1963 (hereinafter called "the Act of 1963") certain lands described in the schedule to the Act of 1963 (and by section 2 of that Act defined as "the churchyard") were freed from restrictions attaching thereto as a disused burial ground, and the subsequent use or disposition of the same for other purposes was authorised, subject as in the Act of 1963 provided:

And whereas by virtue of a reorganisation scheme for the city of London made under the Reorganisation Areas Measure, 1944, and coming into force on the 2nd February, 1954, the former parish of Saint Dionis Backchurch now forms part of the parish of Saint Edmund the King with Saint Nicholas Acons, All Hallows Lombard Street, Saint Benet Gracechurch, Saint Leonard Eastcheap and Saint Dionis Backchurch, and the freehold of the churchyard appurtenant to the church is now vested in the incumbent of the benefice of Saint Edmund the King with Saint Nicholas Acons, All Hallows Lombard Street, Saint Benet Gracechurch, Saint Leonard Eastcheap and Saint Dionis

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Backchurch, the present incumbent thereof being the Reverend Leslie William Hamilton Whiteside (hereinafter called "the incumbent"):

And whereas burials in the said churchyard were discontinued by Order in Council of Her late Majesty Queen Victoria dated 8th August, 1853:

And whereas the western boundary of the land firstly described in the said schedule to the Act of 1963, shown coloured pink upon the plan referred to in section 2 of the Act of 1963, forms the eastern boundary of the church hall of Saint Dionis Backchurch, but no part of the site of the said church hall is included within the land so described in the schedule to the Act of 1963:

And whereas the said church hall was rebuilt in or about the year 1938:

And whereas on the 8th November, 1963, the incumbent entered into a contract for the sale of the lands described in the schedule to the Act of 1963, together with certain other lands vested in the incumbent (including the site of the church hall of Saint Dionis Backchurch), for development for commercial purposes:

And whereas since that date it has been ascertained that when the church hall of Saint Dionis Backchurch was rebuilt as aforesaid the area occupied by the former church hall was exceeded on or towards the east and that a small part of the churchyard appurtenant to the former church of Saint Dionis Backchurch was then included in the site of the church hall as so rebuilt:

And whereas it is expedient that the Act of 1963 should be amended in order that the portion of the churchyard of the former church of Saint Dionis Backchurch on which part of the church hall now stands may be dealt with in accordance with the provisions of the Act of 1963 as if the lands described in the schedule to that Act and shown upon the plan referred to in section 2 thereof had included the said portion of the churchyard:

And whereas it is expedient that the provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Saint Dionis Backchurch Churchyard (Amendment) Act 1964, and the Saint Dionis Backchurch Churchyard Act 1963 and this Act may be cited together as the Saint Dionis Backchurch Churchyard Acts 1963 and 1964. Short and collective titles.

2. In this Act, unless the subject or context otherwise requires— Interpretation.

“ the Act of 1963 ” means the Saint Dionis Backchurch Churchyard Act 1963;

“ the additional land ” means the land described in the schedule to this Act, which land is shown and coloured pink on a plan marked “ Plan of the Additional Land ” signed in triplicate by the Right Honourable the Lord Merthyr, the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred, one copy of which has been deposited at the office of the Clerk of the Parliaments, House of Lords, one at the Private Bill Office, House of Commons, and one at No. 1 The Sanctuary, in the city of Westminster, being the office of Messrs. Lee, Bolton and Lee, the solicitors to the incumbent;

and any expression to which a meaning is assigned by the Act of 1963 has the meaning so assigned.

3.—(1) Subject to the provisions of this section the Act of Application 1963 shall have effect in all respects and for all purposes as if and the additional land had been described in the schedule to the amendment of Act of 1963 and had been shown coloured pink upon the plan referred to in section 2 of the Act of 1963.

(2) Before the owner, pursuant to section 6 (Removal of human remains from churchyard) of the Act of 1963, removes or causes to be removed from any part of the additional land the remains of any deceased person interred therein, the owner shall demolish or cause to be demolished such part of the existing church hall of Saint Dionis Backchurch as may be situate upon the additional land.

4. All the costs, charges and expenses preliminary to and of Costs of Act, and incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the incumbent.

SCHEDULE

Section 2.

DESCRIPTION OF THE ADDITIONAL LAND

A piece of land in the city of London forming part of the churchyard appurtenant to the former church of Saint Dionis Backchurch, containing 345 square feet or thereabouts, situated off the west side of Lime Street, and bounded by a line commencing at the south-eastern corner of the existing church hall of Saint Dionis Backchurch and proceeding along the east flank of the said hall in a northerly direction from the south-east corner thereof for a distance of 4 inches or thereabouts, thence in an easterly and northerly direction for a total distance of 25 feet 4 inches or thereabouts along the outer face of the retaining wall of the area adjoining the said hall to the rear of No. 10 Ship Tavern Passage, thence in a westerly direction along the northern boundary of the said area and the said hall for a distance of 16 feet 6 inches or thereabouts, thence in a southerly direction for a distance of 21 feet or thereabouts, and thence in an easterly direction for a distance of 10 feet 9 inches or thereabouts to the point of commencement.

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